

BEFORE THE FEDERAL MARITIME COMMISSION

MCS INDUSTRIES, INC.,

Complainant

v.

COSCO SHIPPING LINES CO., LTD. AND

MSC MEDITERRANEAN SHIPPING COMPANY S.A.,

Respondents.

DOCKET NO. 21-05

**OPPOSITION OF RESPONDENT MSC MEDITERRANEAN
SHIPPING COMPANY S.A. TO COMPLAINANT'S MOTION
FOR LEAVE TO FILE AN AMENDED COMPLAINT**

Pursuant to Rules 69 and 71 of the Commission's Rules of Procedure, 46 C.F.R. §§ 502.69 and 502.71, Respondent MSC Mediterranean Shipping Company S.A. ("MSC") hereby opposes Complainant's Motion for leave to file an amended complaint. The proposed amended complaint provided with the motion would substantially broaden the issues in this proceeding and substantially rewrite the existing Complaint, even though Your Honor last week set a three-month period to complete all remaining discovery so that this matter can be promptly addressed and resolved. *See* Dec. 21, 2021 Order, at 1 (attached as Exhibit 1.) Your Honor's Order expressly referenced the "significant amount of time on discovery" the parties had already spent, and the "limited geographic and temporal scope" of the proceeding. *Id.* Your Honor had previously noted that discovery under the existing Complaint is largely "narrowly tailored to conduct between the parties, between California and two ports in China, over a four-month timeframe." *See* Dec. 8 Order, at 5, 8, 9.

The motion to amend would upend the current schedule by expanding the scope and time period of the claims from four to sixteen months by adding the 2020-21 contract year to a

Complaint that is now limited to the May-August 2021 period, and potentially expand the geographic scope as well. It does so on the basis of facts that were known or readily knowable to the Complainant at the time it filed the Complaint in this action -- yet Complainant offers no justification for waiting until now to attempt to expand this case to the 2020-21 service contract year. Moreover, despite the extensive rewrite, the proposed amended complaint does not fix the problems in the existing Complaint identified in MSC's pending motion to dismiss; if anything, it reinforces that Complainant is pursuing claims that are inherently breach of contract claims. Finally, adding claims concerning the 2020-21 service contract to the case, as pled in the proposed amendment, not only confirms the inherently contractual nature of much of the Complaint, but also adds a new set of issues because MSC itself has ripe claims against Complainant for its failure to meet its contractual commitments to MSC in the 2020-21 contract year (and prior years). Allowing an amended complaint would be entirely inconsistent with the efficient disposition of this proceeding, and would be wholly unfair to MSC since it could not pursue its closely related contractual claims for the 2020-21 year in this forum. The motion to amend should be denied.

I. THE CURRENT STATUS OF THIS PROCEEDING

The current procedural schedule in this case is based on, and a limitation of, the schedule presented in the parties' *Joint Status Report* filed on December 20 2021. At Complainant's suggestion the parties presented an open-ended schedule keyed to MSC's compliance with Your Honor's Dec. 8, 2021 discovery order and requested an extension of the date for an initial decision in the case. *Joint Status Report*, at 2 (attached as Exhibit 2). The parties stated that the proposal would give time to deal with (a) the "third-party fact discovery and deposition scheduling issues raised in Complainant MCS's prior motion to extend the discovery schedule," (b) "the fact that both parties, in view of Your Honor's December 8 Order, intend to seek additional discovery,"

and (c) time to seek necessary governmental approvals under Swiss law to comply with Your Honor's order compelling discovery. *See* Joint Report, at 1. The parties also stated that "MSC plans to file a motion to dismiss, or alternatively if necessary as to some counts for summary disposition, as indicated in its Response to the Motion to Compel, and Complainant MCS reserves its right to file or oppose any motions, including on the basis that discovery is not yet complete." *Id.* at 3.

Although the report expressly discussed anticipated motions practice, and MSC has now filed its promised motion to dismiss, Complainant did not state either in the report or in its meet and confer discussion with MSC any intent to move to amend the Complaint just three days later.¹ The motion to amend thus substantially upsets a key basis on which Your Honor has directed discovery be completed in three months, namely that the case involves alleged noncarriage of Complainant's cargo "between California and two ports in China, over a four-month timeframe." *See* Dec. 8 Order, at 5, 8, 9.

II. THE MOTION FOR LEAVE TO AMEND SHOULD BE DENIED

A. The Legal Standard

Complainant refers to the standard for allowing leave to amend a complaint under Rule 15 of the Federal Rules of Civil Procedure, but other than quoting a phrase from the rule provides no discussion of the applicable law. *See* Mot. at 1-2. Although "[t]he court should freely give leave when justice so requires," Fed. R. Civ. P. 15(a)(2), such leave "is by no means automatic." *Wimm v. Jack Eckerd Corp.*, 3 F.3d 137, 139 (5th Cir. 1993) (quotation omitted). Relevant factors to consider include "undue delay, bad faith or dilatory motive on the part of the movant, repeated

¹ Complainant first advised MSC of its intent to seek to amend the Complaint via an email sent the afternoon of the day before the Christmas Eve holiday, stating further that it planned to file the motion after the close of business that same day.

failure to cure deficiencies by amendments previously allowed, undue prejudice to the opposing party, and futility of amendment.” *Id.* Other than asserting incorrectly that it has not been dilatory and that the proposed amended complaint does not materially broaden the claims in this case, Complainant makes no real effort to assert that it has met this standard. It has not.

B. Complainant Offers No Justification For Its Dilatory Conduct

Leave to amend a complaint is properly denied in cases involving, *inter alia*, “undue delay” and “bad faith or dilatory motive on the part of the movant.” *Foman v. Davis*, 371 U.S. 178, 182 (1962). “A motion to amend may be denied as dilatory or unduly delayed where a plaintiff was aware of the facts giving rise to the cause of action before filing the complaint that she now wishes to amend.” *LaPrade v. Abramson*, 2006 WL 3469532, at *4 (D.D.C. Nov. 29, 2006). *LaPrade* cited *Yager v. Carey*, 910 F. Supp. 704, 731-32 (D.D.C. 1995), where the court denied leave to amend because plaintiff had been aware of a claim at the time the original complaint was filed but had not included it. *See also McGee v. District of Columbia*, 646 F. Supp. 2d 115, 121-22 (D.D.C. 2009) (“[t]he fact that claims [added] in an amended complaint are based on the same legal duties or facts asserted in the original complaint is grounds for denying leave to amend”) (citations omitted).

The current Complaint covering the 2021-22 service contract has been pending for nearly five months, and two discovery schedules have been set based on it. As noted above, and as Complainant does not contest, it deals at most with alleged noncarriage of a limited amount of cargo over the period from May to August 2021 from two ports in China, Qingdao and Tianjin, to Los Angeles/Long Beach. Indeed, discovery in the case shows that the period at issue is even more limited -- Complainant now admits that MSC has carried the contemplated amount of contractually allocated cargo from Tianjin since July (and in fact it has done so since sometime in

June), and from Qingdao since August. Complainant has still not produced any evidence in discovery that it made a proper request to book any cargo that allegedly was not carried during this period.²

The amended complaint now seeks to expand the limited time period of the current Complaint to 16 months, and perhaps to other ports as well, based on the allegation that MSC only carried 1101 TEUs of the 1400 TEUs it was contractually obligated to carry under the 2020-21 service contract, and assuming that Complainant properly tendered the 299 TEUs it alleges were not carried. Complainant does not explain why it has waited to this point in the litigation to bring this claim; this information was readily available to it when it filed the Complaint. The basis for the Complaint's claims as to the 2021-22 service contract was that MSC had allegedly carried only a portion of the cargo it was contractually obligated to carry. *See* Complaint ¶¶ 17, 40-42. Complainant provides no reason, and there is none, why it could not have made the same allegation as to 2020-21 service contract in July 2021 if there was any merit to the claim.³ Complainant also claims to have uncovered some documents in discovery as to MSC's request that it pay a peak season surcharge, but again Complainant was well aware of that request when it filed its initial Complaint, just as it was aware that it agreed to pay such a surcharge for a period of time under

² The significant discovery that has already taken place has also confirmed that Complainant did not make a single communication to MSC concerning any alleged noncarriage at Qingdao or Tianjin for at least a five week period between May and July 2021, that Complainant did not place any booking requests for Qingdao for months during that period, that Complainant had contracted with other carriers for most of its volume from Qingdao to the West Coast in 2021-22 (and may or may not have tendered cargo to those other carriers rather than MSC), and that as late as a week before Complainant filed its initial Complaint in July 2021 its manager in charge of ocean transportation had only the vaguest understanding of what Complainant or its agents may have attempted to book during that time period. The notion that the noncarriage itself is evidence that MSC was not meeting its contractual obligations is unsupported by this record; in any event as set forth in MSC's pending motion to dismiss the Commission has no jurisdiction over breach of contract claims.

³ MSC does not intend to suggest by this that Complainant adequately investigated the existing Complaint before filing it, only that it could have added the 2020-21 contract year on the same basis rather than waiting nearly five months to do so, after entry of a new scheduling order intended to resolve this matter promptly.

the 2020-21 service contract. This information also cannot provide any justification or excuse for Complainant's delay.

Complainant's delay has also inarguably prejudiced the prompt resolution of this proceeding. Just last week the parties presented a status report and Your Honor issued a revised discovery order based on the limited temporal and geographic scope of the existing Complaint. Complainant does not say in its motion for leave to amend the complaint whether it knew, but did not say in that report, that it would be seeking leave to file an amended complaint in just a few days and withheld that information. It would be an astonishing piece of work in those few days for Complainant's counsel to have received fresh instructions to draft an amended complaint, to do so, and then to obtain their client's review, verification, and instructions to file it. But whether or not Complainant proceeded in good faith last week, its overall delay in bringing claims on the 2020-21 contract can be measured in months, not days, and no excuse for it is offered or apparent.

Complainant refers to discussions between the parties on the scope of discovery as to its existing claims, misrepresenting them to suggest that the substantial expansion of its claims it seeks would not add to the discovery burdens in this case. Complainant is incorrect. The expansion Complainant seeks would put at issue not just the 59 FEUs of cargo it currently claims were not carried from two ports over a limited period of four months, but all cargo tendered for carriage and carried or not carried over an additional twelve-month period. Complainant has still not produced any evidence to support that it properly tendered under the current contract the 59 FEUs it alleges the Respondent did not carry. The same issue will arise under the 2020-21 contract year with respect to the 299 TEUs Complainant now apparently seeks to add. This discovery would go far in excess of the very limited discovery as to matters during that earlier period that might be directly relevant to the existing claims.

To take one example, Complainant cites to one of the only three bookings it has identified as having been made for carriage from Qingdao under the 2021-22 service contract for cargo that was not in fact carried as evidence that MSC has already opened the door to consideration of carriage under the 2020-21 service contract. Full discovery has already taken place as to that booking that reveals the opposite. Complainant attempted to book that cargo for carriage under the 2021-22 service contract before it was effective (May 1, 2021) and MSC justifiably denied the booking on the grounds that it could not offer Complainant carriage at rates that were not covered by an operative service contract. That matter cannot properly be cited as justification for a dramatic expansion in the scope and duration of issues covered by the proposed amended complaint, and Complainant is simply incorrect in asserting that it demonstrates that there would be no burden or delay in now expanding the proceeding to include an entire new year of bookings, voyages, and carriage under the prior contract.

C. The Proposed Amended Complaint Would Add To The Impropriety Of Litigating Inherently Contractual Claims In This Forum

The proposed amended complaint removes the allegations of collusion that Complainant had already abandoned earlier in this proceeding, leaving its allegations of MSC's supposed misconduct all squarely based on allegations of individual contractual nonperformance. Allegations of contractual breach permeate the proposed amended complaint and underlie all of its allegations.⁴ Whether these essentially contractual allegations actually state a claim under the

⁴ For example, Paragraph 6 alleges MSC's unreasonable practice as "systematically failing to meet its quantity commitments" under its contracts with Complainant. Paragraph 7 again alleges an "unreasonable practice" of not "honoring its service contract commitments," Paragraph 8 likewise alleges that MSC knowingly and deliberately "failed to provide space at contracted rates," and Paragraph 9 alleges that MSC improperly conditioned "compliance with its contractual service commitments." The pattern continues in the more specific allegations that follow the introductory material. See ¶¶ 22-38 (discussing the contracts and MSC's alleged breach in detail); ¶¶ 39-47 (allegations explicitly captioned "Disregard of Service Contracts"); and ¶¶ 48-71 (alleging an attempt to "Coerce Extracontractual Surcharges," but discussing negotiations for peak season surcharges under a provision of the contract that expressly allows MSC to seek

Shipping Act that can be considered without deciding contractual matters outside the Commission's jurisdiction will be a matter for briefing if the Complainant's motion for leave to file and serve the amended complaint is granted and the matter is not decided in the context of the existing Complaint. For purposes of the present motion, however, Complainant's effort to advance essentially contractual claims for the 2020-21 service contract year points up yet another unfairness and inefficiency in allowing the amendment to begin with.

Complainant seeks to litigate in this forum a claim that an alleged minimum quantity commitment shortfall of nearly 300 TEUs in the 2020-21 contract year was MSC's fault, while MSC believes that it was largely if not entirely the result of Complainant's own failure to make timely and proper bookings. (Indeed, in the 2021-22 contract year Complainant failed to even contact MSC about carriage at Qingdao or Tianjin for weeks and weeks on end.) As to the 2020-21 contract year, MSC would have a ripe counterclaim for liquidated damages as to Complainant's failure to meet its commitment; in fact it would be a compulsory counterclaim if the Commission had jurisdiction over it as it arises out of the same common nucleus of operative facts. The Commission has not exercised jurisdiction over such counterclaims, however. *See* 46 C.F.R. § 502.62(b)(4)(counterclaims must be "limited to violations of the Shipping Act within the jurisdiction of the Commission"); *Streak Products, Inc., and SYX Distribution Inc. v. UTi, United*

agreement as to such charges, and that the Complaint itself notes are well established in the marketplace.) The Complaint also incongruously criticizes MSC for purchasing capacity (which addresses the shortfall of supply to provide significant benefits to U.S. shippers and consumers), and alleges that MSC is "poised" to become the world's largest container line (without disclosing that material it provided to the Commission before filing this suit shows MSC's market share worldwide to be under 17%, well below levels that could even arguably be considered reflective of market power.) *See id.* ¶ 10. MSC's share of the China-US Transpacific trade is over one-third lower than even the worldwide figure Complainant provided the Commission -- about 11-12%.

States, Inc., Dkt. No. 13-04, 2014 WL 5316342 at n. 2 (ALJ April 15, 2014)(declining to exercise supplemental jurisdiction over a counterclaim).

Allowing Complainant's 2020-21 claims into the case now, when MSC has no ability to bring its own claims that are the other side of the same coin, would be highly prejudicial to MSC and inefficient for everyone. Complainant of course could and should have noticed these issues for arbitration, and if it wanted to advance them here it could and should have done so at the beginning of this proceeding if it thought they had any merit. Allowing claims as to 2020-21 to be advanced now will require MSC to initiate an arbitration so that all related claims can be resolved at once. If the motion for leave to amend were granted, MSC would thus, along with a renewed motion to dismiss the amended claims, ask that any claims that remain in this proceeding be stayed pending that arbitration, since as noted above the claims as pled in the proposed amended complaint inherently depend on demonstrating a breach of contract.

D. Complainant's Other Argumentation Is Meritless

Instead of dealing with the factors relevant to a motion for leave to amend a Complaint, Complainant spends much of its motion complaining that MSC proceeded with its long-stated intent to file a motion to dismiss the existing Complaint without, in essence, treating Complainant's motion for leave to amend as if it had already been granted. *See* Motion at 3-4. Complainant also complains that MSC did not meet and confer on its motion to dismiss, *id.* at 4, even though (a) MSC had previewed its intent to file a motion to dismiss in prior filings and provided both oral and written notice confirming its intent to do so in the week before filing, as memorialized in the parties' joint statement on the proposed revised discovery schedule quoted above, (b) a meet and confer is not required in any event for dispositive motions under the Commission's rules, *see* 46 CFR 502.70, and (c) Complainant itself did not disclose in a timely

manner its intent to move to amend the Complaint, contacting MSC counsel only at the last minute even though it *did* have an obligation to meet and confer on its nondispositive motion under 46 CFR 502.71. Complainant also protests MSC's decision to finish the filing of its motion to dismiss that was interrupted by Complainant's last minute notice of its intent to file a motion to amend its Complaint, but again does not explain why MSC should have treated as already granted a proposed motion for leave to amend that MSC intended to strenuously oppose.

The motion for leave to file an amended complaint should be denied.

Respectfully submitted,

/s/ Michael Scanlon

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Counsel for Respondent
MSC Mediterranean Shipping Company S.A.

Dated: December 30, 2021

CERTIFICATE OF SERVICE

I certify that, on December 30, 2021, a true and current copy of the foregoing Opposition to Motion for Leave to Amend was filed via electronic mail with the Secretary of the Federal Maritime Commission, and a copy was served via electronic mail on the following:

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/s/ John Longstreth

Exhibit “1”

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

MCS INDUSTRIES, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD. AND MSC
MEDITERRANEAN SHIPPING COMPANY SA, *Respondents*.

DOCKET NO. 21-05

Served: December 21, 2021

ORDER OF: Erin M. WIRTH, *Chief Administrative Law Judge*.

REVISED SCHEDULING ORDER

On December 20, 2021, Complainant MCS Industries, Inc. (“MCS Industries”) and Respondent Mediterranean Shipping Company SA (“Mediterranean Shipping”), collectively the “Parties,” filed a joint status report and proposed revised discovery schedule.

The proposed revised discovery schedule only lists “target” deadlines and would extend the discovery period by over six months even though the parties have already expended a significant amount of time on discovery. This proceeding has only two parties and a limited geographic and temporal scope. While an extension of the discovery schedule is appropriate, the extension requested by the parties is excessive. The parties will be granted three months to complete all remaining discovery. The parties should work together to determine the most efficient means of completing discovery in a timely manner.

The parties shall have all discovery, including depositions and expert witness discovery, completed by March 22, 2022. The parties must schedule time to complete all depositions, supplemental discovery, and to have discovery motions resolved prior to the close of discovery. The parties should be prepared to proceed without any further discovery after the close of discovery. As the parties were advised in the initial scheduling order, in Commission cases it often is more efficient to brief the proceeding once discovery is complete. To assist the parties with scheduling, the deadlines for briefing and the requirements for briefing are included below.

To ensure timely progress, the parties will be required to file joint status reports on the tenth day of every month, beginning on January 10, 2022. The parties must abide by the following schedule:

March 22, 2022	Close of discovery
April 19, 2022	Complainant files brief with proposed findings of fact and appendix.

May 17, 2022	Respondent files opposition brief with proposed findings of fact and responses to Complainant's proposed findings of fact, and appendix.
June 1, 2022	Complainant files reply brief with responses to Respondent's proposed findings of fact.

Any request for an extension will be reviewed for good cause, even if the parties agree on the requested extension. Pursuant to the Howard Coble Coast Guard and Maritime Transportation Act of 2014 and Commission Docket No. 15-06, attorney fees may be awarded to any prevailing party in a complaint proceeding. It is therefore in the best interest of both parties to proceed expeditiously.

The parties are reminded that a "scheduling order 'is not a frivolous piece of paper, idly entered, which can be cavalierly disregarded by counsel without peril.'" *Johnson v. Mammoth Recreations, Inc.*, 975 F.2d 604, 610 (9th Cir. 1992) (quoting *Gestetner Corp. v. Case Equipment Co.*, 108 F.R.D. 138, 141 (D. Me. 1985)). Moreover, "[p]arties cannot control an agency's docket or procedures through agreement among themselves." *Simmons v. United States*, 698 F.2d 888, 893 (7th Cir. 1983). The authority of courts to control their dockets is well settled. *Link v. Wabash Railroad Co.*, 370 U.S. 626, 630-31 (1962); *United States v. Hughey*, 147 F.3d 423, 429 (5th Cir. 1998).

The parties' briefs, proposed findings of fact, responses to proposed findings of fact, and appendices shall be in the following forms:

1. **[Party's] Brief.** Each party shall file a brief meeting the requirements of Commission Rule 214, 46 C.F.R. § 502.214, with the exception that the proposed findings of fact and responses to the proposed findings of fact shall not count toward the page limit found in Rule 214(e).
2. **[Party's] Proposed Findings of Fact.** This document shall set forth proposed findings of fact in numbered paragraphs. Each paragraph shall be limited as nearly as practicable to a single factual proposition. Each factual proposition shall be followed by an exact citation to evidence that the party contends will support the proposed finding of fact; e.g., a page number in the appendix. The party shall provide to each other party and to the Office of Administrative Law Judges an electronic copy of its proposed findings of fact with the hard copy of its proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by disk, flash drive, or email.
3. **[Party's] Responses to [Party's] Proposed Findings of Fact.** This document shall set forth verbatim each proposed finding of fact in another party's proposed findings of fact, then admit or deny the proposed finding. Each proposed finding of fact that an opposing party denies shall be followed by an exact citation to evidence that the opposing party contends will rebut the evidence the proposing party claims supports the proposed finding of fact. The opposing party shall provide to the party and to the Office of Administrative Law Judges an electronic copy of the response to [Party's] proposed findings of fact with the hard copies of the response to [Party's] proposed findings of fact. The electronic copy shall be in a word-processing format (e.g., Microsoft Word) and provided by disk, flash drive, or email.

4. **[Party's] Appendix.** The evidence on which a party's proposed findings of fact or response to another party's proposed findings of fact is based shall be included in an appendix.
- a. The cover of the appendix shall identify the party or parties that prepared the appendix;
 - b. The appendix should be in one PDF document, if practicable. The pages of the appendix shall be numbered sequentially, for example CX 1, CX 2 or RX 1, RX 2, etc.;
 - c. The appendix must begin with a table of contents identifying the page at which each individual document begins and each exhibit should be clearly identified, for example by a cover sheet or bookmark;
 - d. Each party shall ensure that all documents in its appendix are legible and in English or include a verified translation as required by Rule 7 (see 502 C.F.R. § 502.7); and
 - e. The parties are instructed to cite to a document in an appendix already in the record rather than include the same document in its own appendix. For instance, if Respondent contends that a document included in Complainants' appendix rebuts the evidence Complainant claims supports a proposed finding of fact, Respondent shall cite to Complainants' appendix rather than include a second copy of the same document in its own appendix.

The parties are directed to consult with each other to determine the most practicable way to send electronic copies of documents in a word-processing format to each other. The parties are directed to send the electronic copy in a word-processing format of required documents to the Office of Administrative Law Judges at the following email address: judges@fmc.gov, with opposing counsel copied. Word processing versions should not be submitted to the Office of the Secretary.

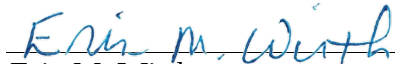

Erin M. Wirth
Chief Administrative Law Judge

Exhibit “2”

Before the
FEDERAL MARITIME COMMISSION

Washington, D.C. 20573

Docket No. 21-05

MCS INDUSTRIES, INC. v. COSCO SHIPPING LINES CO., LTD. AND
MSC MEDITERRANEAN SHIPPING COMPANY SA

JOINT STATUS REPORT AND PROPOSED REVISED DISCOVERY SCHEDULE

Pursuant to Your Honor's December 8, 2021 Order, Complainant MCS Industries, Inc. ("MCS") and Respondent MSC Mediterranean Shipping Company SA ("MSC"), collectively the "Parties," by their respective undersigned counsel, have conferred and submit this joint status report and proposed revised discovery schedule.

The proposed revised discovery schedule reflects, in part, the additional time needed to accommodate the third-party fact discovery and deposition scheduling issues raised in Complainant MCS's prior motion to extend the discovery schedule. Those will extend well into next month at the least. The proposed revised discovery schedule also reflects the fact that both parties, in view of Your Honor's December 8 Order, intend to seek additional discovery. Additionally, Respondent MSC's compliance with Your Honor's December 8 Order will likely require governmental approvals under Swiss law (specifically, Article 271 of the Swiss Criminal Code). Respondent MSC has sought advice from Swiss counsel to identify the most expeditious way forward, but to the extent governmental action is required to address any Swiss sovereignty issues, the timelines are necessarily uncertain.

The Swiss blocking statutes do not implicate Respondent MSC's compliance with voluntary discovery; thus, the proposed revised discovery schedule reflects that even if discovery subject to Your Honor's December 8 Order may be delayed, supplemental discovery exchanged

between the Parties, and the third-party discovery now being pursued can proceed in parallel with that process.

The Parties agree on the proposed revised discovery schedule on the basis that such proposed timing would not prejudice either of the Parties' ability to (1) review further productions and responses, including for compliance with the Order, in advance of taking fact depositions, (2) notice, prepare for, and take fact depositions on the basis of a substantially complete factual record, and (3) otherwise complete discovery in an orderly and efficient manner.

In order to avoid prejudice to either of the Parties, and in view of the uncertainty in timing due to the potential need for governmental approvals, the Parties jointly request that the Presiding Officer extend the initial decision date in this case beyond the date contemplated by the original August 3, 2021 Notice of Filing of Complaint and Assignment, and jointly propose the following revised discovery schedule:

Event	Deadline
Target for the Parties to serve supplemental requests for production ("RFPs") of documents and electronically stored information ("ESI")	January 21, 2022
Target for substantial completion of productions of documents and ESI in response to supplemental requests	March 4, 2022
Target for exchange of privilege logs on supplemental requests	March 11, 2022
Target for MSC's full compliance with Order Granting Motion to Compel and production of associated privilege log to MCS	"New Target"
Target to complete depositions of fact witnesses	84 days after New Target
Disclosure of initial expert reports	91 days after New Target
Last day to serve RFPs, interrogatories, and requests for admission	98 days after New Target
Disclosure of rebuttal expert reports	105 days after New Target
Complete expert depositions	119 days after New Target
Close of discovery	128 days after New Target

The Parties also discussed anticipated motions practice. Respondent MSC plans to file a motion to dismiss, or alternatively if necessary as to some counts for summary disposition, as indicated in its Response to the Motion to Compel, and Complainant MCS reserves its right to file or oppose any motions, including on the basis that discovery is not yet complete. Consistent with Your Honor's omission of a specific deadline for motions for summary decision in the September 23, 2021 Scheduling Order, the Parties are not proposing any specific deadline for such motions prior to the end of the discovery schedule. MSC will not seek any stay of discovery in connection with any such motion.

Respectfully submitted,

HUTH REYNOLDS LLP

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/s/ Matthew J Reynolds (by permission)

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Dated: December 20, 2021